

**CHAPTER lxvi.**

An Act to amend the powers of the Milford Docks Company of levying rates to revive the powers for the construction of a pier and for other purposes.

A.D. 1919.

[15th August 1919.]

WHEREAS by the Milford Docks Act 1874 the Milford Docks Company (in this Act called "the Company") were incorporated and by that Act and the other Acts mentioned in the First Schedule to this Act (all of which are in this Act included in the expression "the existing Acts") various powers have from time to time been conferred on the Company:

And whereas by the existing Acts powers have been conferred on the Company of demanding and taking rates on vessels entering or leaving the Company's wet dock or receiving or delivering passengers or goods at or upon any wharf quay or other like work of the Company and rates on articles and goods brought into or shipped unshipped received or delivered in any dock or at or upon any such wharf quay or work and rates and rents for the use of the Company's graving dock and for the docking pumping and undocking of vessels and other rates rents and charges:

And whereas many of the rates and rents so authorised to be taken by the Company are unsuitable to the circumstances of traffic at the present time and it is expedient to revise and amend such rates and rents and in order to meet the increased expenses of the Company in maintaining and carrying on their undertaking and in fulfilling their statutory obligations it is expedient that some of such rates and rents be increased as by this Act provided:

And whereas by the Milford Docks Act 1890 the Company were authorised to make and maintain a pier described in
[Price 1s. Net.] A

A.D. 1919. section 4 of that Act partly on lands situate formerly in the parish of Hubberston in the county of Pembroke and now in the parish of Hakin in the urban district of Milford Haven and partly on the bed and shore of Milford Haven:

And whereas the period limited for the completion of the said pier was from time to time extended and by the Milford Docks Act 1911 was further extended until the fourth day of July nineteen hundred and sixteen and expired on that date and it is expedient that the powers for the construction thereof be revived and extended:

And whereas the following is a statement of the capital which the Company are by the existing Acts authorised to issue and have issued:—

	Authorised.	Issued.
	£	£
Ordinary shares - - - - -	350,000	161,940
Second preference stock - - - - -	250,000	199,198
First preference stock - - - - -	300,000	223,592
Debenture stock B - - - - -	140,000	140,000
Debenture stock A - - - - -	430,000	402,469
Special charge debenture stock - - - - -	70,000	51,500

and it is expedient that provision be made with reference to the issue of capital by the Company as in this Act contained:

And whereas a plan and section showing the line and level of the pier the powers for the construction of which are by this Act revived such plan showing also the lands upon which the pier will be situate were duly deposited with the clerk of the peace for the county of Pembroke and are hereinafter respectively referred to as "the deposited plan and section":

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Milford Docks Act 1919.

(2) The existing Acts and this Act may be cited together as A.D. 1919.
the Milford Docks Acts 1874 to 1919.

2.—(1) In this Act the several words and expressions to Interpreta-
tion.
which meanings are assigned by the Harbours Docks and Piers
Clauses Act 1847 shall subject to the provisions of this Act
have the same respective meanings unless there be something in
the subject or context repugnant to such construction:—

“The Act of 1874” means the Milford Docks Act 1874;

“The Act of 1890” means the Milford Docks Act 1890;

“The pier” means the pier authorised by the Act of 1890
and the powers for the construction of which are by
this Act revived.

(2) In the existing Acts and this Act and in the application
to the Company of the Harbours Docks and Piers Clauses Act
1847—

“Vessel” shall include ship boat lighter and craft of every
kind and whether navigated by steam or otherwise and
seaplane hydroplane airship and similar craft whether
heavier or lighter than air;

“Shipped” and “unshipped” shall include loaded on or
discharged from any seaplane hydroplane airship or
similar craft whether heavier or lighter than air.

(3) In the application to the Company of section 28 of the
Harbours Docks and Piers Clauses Act 1847 “packet boat” and
“Post Office packet” mean respectively a vessel employed by
or under the Post Office or the Admiralty for the conveyance
under contract of postal packets as defined by the Post Office
Act 1908 and “post office bag of letters” means a mail bag as
defined by the said Act Provided that nothing in the said Act
of 1847 or the existing Acts or this Act shall extend to exempt
from rates or duties any such vessel as aforesaid if she also
conveys passengers or goods for hire.

3. The Company may demand and take in respect of every Rates on
vessels.
vessel entering or leaving or remaining in any wet dock of the
Company and in respect of every vessel not entering such a dock
but receiving or delivering passengers or goods at or upon or
remaining alongside any wharf quay pier or other work of the
like nature constructed under the powers of the existing Acts or
any other Act relating to the Company any sum or sums not
exceeding the rates and rents mentioned in the Second Schedule
to this Act and every such sum shall be payable by the master
of the vessel.

A.D. 1919.

Rates on
goods.

4.—(1) The Company may demand and take for all goods and animals which shall be brought into or shipped unshipped received or delivered within any dock of the Company or at or upon any wharf quay pier or other like work as aforesaid (a) in the case of goods and animals mentioned in Part I. of the Third Schedule to this Act rates not exceeding those specified in that schedule with respect to such goods and animals respectively and (b) in the case of all other goods and animals such reasonable rates as the Company may think fit and every such rate as aforesaid shall be payable by the owner of the goods or animals.

(2) The regulations set forth in Part II. of the said Third Schedule shall apply to all rates payable under the provisions of this section.

Charges for
graving
dock.

5. The Company may demand and take for the use of any graving dock belonging to them and for docking pumping and undocking vessels any charges and rents not exceeding the charges and rents respectively mentioned in the Fourth Schedule to this Act and such charges and rents may be demanded by the Company of and from the owner or the master of the vessel in respect of which they are due or payable and shall if the Company think fit be paid before the vessel is permitted to enter any such graving dock or leave the same or the premises of the Company and shall be recoverable in any manner prescribed by section 44 of the Harbours Docks and Piers Clauses Act 1847 or by section 42 (Company may distrain for graving dock rates) of the Act of 1874.

Rates for
shipment and
weighing &c.
of goods.

6. Section 44 of the Act of 1874 is hereby amended as follows:—

(1) The words “sixpence per ton” shall be substituted therein for “twopence per ton”:

(2) The words “For coal coke or culm discharged from any vessel and deposited on any work or premises of the Company any sum as a landing rate not exceeding threepence per ton” shall be inserted therein after the first paragraph thereof:

(3) The paragraph which commences “For the weighing by the Company” shall be omitted therefrom:

(4) The words “to be constructed or provided under the authority of this Act” shall be omitted therefrom in each place where those words occur:

(5) The words “usual and” shall be omitted therefrom.

7. Section 38 (Rates payable on ships) section 40 (Rates on goods) and section 41 (Rates for use of graving dock) of the Act of 1874 the three schedules to that Act section 9 (As to graving dock rates) of the Milford Docks Act 1888 from the words "and may from time to time" to the end of that section and the schedule to the last-mentioned Act are hereby repealed.

A.D. 1919.
Repeal.

8. Subject to the provisions of this Act the unrepealed provisions of the existing Acts shall have effect as if the rates by this Act authorised had been authorised by the Act of 1874 and shall apply to those rates accordingly.

Application
of existing
Acts.

9. All rights and powers conferred upon the Company by the Act of 1890 for the construction and completion of the pier and all other powers of the Company in relation thereto are hereby revived and may be exercised by the Company notwithstanding anything in the existing Acts to the contrary and the Company may subject to the provisions of the Act of 1890 make and maintain the pier in the line and according to the level shown on the deposited plan and section as if that plan and section had been referred to in the Act of 1890 in lieu of the deposited plans and sections therein defined together with all necessary and convenient jetties stairs landing-stages platforms warehouses machinery cranes lifts approaches rails sidings works and conveniences.

Revival of
powers.

10. If the pier is not completed within seven years from the passing of this Act then on the expiration of that period the powers granted to the Company by the Act of 1890 and revived by this Act for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completion.

11. So much of the pier and of any works in connexion therewith by this Act authorised as is to be made on the bed and shore of Milford Haven shall from and after the completion thereof respectively be included for all purposes in the parish of Hakin and in the urban district of Milford Haven.

Parish in
which pier
to be situate.

12. Subject to the provisions of this Act all the provisions of the Act of 1890 relating to the pier shall continue in force and shall apply as though the powers for the construction thereof had not lapsed :

Provisions of
Act of 1890
to apply.

A.D. 1919.

Provided that sections 7 8 11 and 12 of the said Act shall be read and have effect as if—

- (1) In section 7 the words "Admiralty and of the" were inserted before "Board" where that word firstly and secondly occurs the words "Admiralty and the" before "Board" where that word thirdly occurs and the words "Admiralty or the" before "Board" where that word last occurs;
- (2) In section 8 the words "Corporation of Trinity House Deptford Strond" were substituted for the words "Board of Trade";
- (3) In section 11 the words "Admiralty or the" were inserted before "Board"; and
- (4) In section 12 the words "Admiralty or the" were inserted before "Board" and the word "deem" was substituted for "deems."

Issue of
capital.

13. The Company may from time to time issue and dispose of any debenture stock preference stock or shares of any class or description which they are authorised to issue at such times to such persons at such discount with such amount credited as paid thereon on such terms and conditions and in such manner as the directors may think advantageous to the Company.

Accounts.

14.—(1) The Company shall within three months after the date to which their accounts are made up send a copy of the same to the Board of Trade and the Company shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(2) Section 50 of the Harbours Docks and Piers Clauses Act 1847 shall in its application to the Company have effect as if the words "three months" were therein inserted instead of the words "one month."

Confirmation
of byelaws.

15. Notwithstanding anything in the Milford Docks Acts 1874 to 1919 section 85 of the Harbours Docks and Piers Clauses Act 1847 and so much of section 90 of that Act as relates to the proof of the existence and due making of byelaws shall cease to apply to the Company and in lieu thereof the following provision shall have effect:—

No byelaw which shall be made by the Company after the passing of this Act under the provisions of the Milford

Docks Acts 1874 to 1919 or of the Harbours Docks and Piers Clauses Act 1847 incorporated therewith (except byelaws which relate solely to the Company their officers or servants) shall come into operation until it has been confirmed by the Board of Trade under the hand of an assistant secretary of the Board and the production of a written or printed copy of the byelaw signed and authenticated by the signature of an assistant secretary shall be sufficient evidence for all purposes of the existence and due making of the byelaw without proof of the signature of the assistant secretary. A.D. 1919.

16. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1919.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

ACTS RELATING TO THE COMPANY.

The Milford Docks Act 1874.
 The Milford Docks Act 1875.
 The Milford Docks (Extension of Time) Act 1880.
 The Milford Docks (Further Powers) Act 1882.
 The Milford Docks Act 1883.
 The Milford Docks Act 1884.
 The Milford Docks Act 1888.
 The Milford Docks Act 1890.
 The Milford Docks Act 1892.
 The Milford Docks Act 1894.
 The Milford Docks Act 1898.
 The Milford Docks Act 1900.
 The Milford Docks Act 1901.
 The Milford Docks Act 1903.
 The Milford Docks Act 1906.
 The Milford Docks Act 1911.

SECOND SCHEDULE.

RATES ON VESSELS.

First Class.

s. d.

Vessels with cargoes from any port or place in the United Kingdom Isle of Man or the Channel Islands with liberty to reload for any port or place:—

Rate per ton - - - - - 0 4½

Rent after three weeks from date of entrance per ton per week - - - - - 0 1½

Second Class.

Vessels with cargoes from any port or place in Europe between the North Cape and Ushant with liberty to reload for any port or place:—

Rate per ton - - - - - 0 7½

Rent after three weeks from date of entrance per ton per week - - - - - 0 1½

Third Class.

s d A.D. 1919

Vessels with cargoes from any other port or place in Europe or any port or place in the Mediterranean with liberty to reload for any port or place:—

Rate per ton	-	-	-	-	-	-	-	-	-	0	10½
Rent after three weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	1½

Fourth Class.

Vessels with cargoes from any port or place in Africa between the Straits of Gibraltar and the Cape of Good Hope or from the Canaries Cape de Verd Islands or St. Helena with liberty to reload for any port or place:—

Rate per ton	-	-	-	-	-	-	-	-	-	1	3
Rent after four weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	1½

Fifth Class.

Vessels with cargoes from all other ports or places whatsoever with liberty to reload for any port or place:—

Rate per ton	-	-	-	-	-	-	-	-	-	1	6
Rent after four weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	1½

Sixth Class.

(a) Vessels entering laden and departing without breaking bulk:—

Rate per ton	-	-	-	-	-	-	-	-	-	0	9
Rent after three weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	3

(b) Vessels discharging and reloading and departing with the same cargo:—

Rate per ton	-	-	-	-	-	-	-	-	-	0	6
Rent after three weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	2

(c) Vessels without cargoes or with only part of a cargo entering to load and not to discharge:—

The same rates as vessels with cargoes from the port or place to or from which the vessels so entering to load are destined or have come whichever rates are the higher.

Rent after three weeks from date of entrance per ton per week	-	-	-	-	-	-	-	-	-	0	1½
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A.D. 1919.

Seventh Class.

s. d.

(a) Vessels entering light or in ballast to lie up:—

Rate per ton	-	-	-	-	-	-	-	-	0	6
Rent after four weeks from date of entrance per ton										
per week	-	-	-	-	-	-	-	-	0	1½

(b) Vessels entering with cargoes or parts of cargoes to lie up:—

Rate per ton	-	-	-	-	-	-	-	-	1	3
Rent after four weeks from date of entrance per ton										
per week	-	-	-	-	-	-	-	-	0	1½

(c) Vessels entering light to fit out or for repairs:—

Rate per ton	-	-	-	-	-	-	-	-	0	6
Rent after one week from date of entrance per ton per										
week	-	-	-	-	-	-	-	-	0	2

Any vessels in this class afterwards loading out to pay also the like rates as vessels entering with cargoes from the ports or places to which the vessels so loading out are destined.

Eighth Class.

Paddle vessels seaplanes hydroplanes and similar craft vessels of exceptional construction or method of propulsion and vessels in circumstances not otherwise covered by the provisions of this schedule such reasonable rates rents and duties as may from time to time be fixed by the Company.

GENERAL PROVISIONS.

In this schedule "per ton" means for each ton in the net register tonnage of the vessel or if the vessel has no net register tonnage for each measured ton of the vessel.

Every vessel with a net register tonnage of less than 40 per cent. of the gross tonnage shall pay the appropriate rates and rents according to this schedule calculated on a tonnage equal to 40 per cent. of the gross tonnage but this provision shall not apply to any steamship constructed for the purpose of towing vessels and exclusively employed for that purpose if and when such ship is actually engaged in towing a vessel to or from the undertaking of the Company.

Every ship barge keel boat craft lighter or other vessel unloading from or discharging goods on board of any ship barge keel boat craft lighter or other vessel being within the docks or at or alongside any wharf quay pier or other work of the Company shall pay the like wharfage rates for the goods so unloaded or discharged as the wharfage rates which may be taken under the provisions of this Act for goods

shipped or unshipped in addition to any other rates or rents payable under the provisions of this schedule. A.D. 1919.

In any case where under the provisions of this schedule a rent would be payable for any week there shall be paid for a part of that week a proportionate rent.

THIRD SCHEDULE.

PART I.

WHARFAGE RATES ON GOODS.

Articles.	Per	Maximum rates.	
		s.	d.
Almonds - - - - -	ton	3	0
Alum - - - - -	ton	1	6
Apples - - - - -	ton	2	0
Argol - - - - -	ton	2	6
Ashes zinc - - - - -	ton	0	6
Barilla - - - - -	ton	2	0
Bark loose for tanning - - - - -	ton	2	0
Beer in casks - - - - -	ton	2	0
Bones for manure unpacked - - - - -	ton	1	6
Brass wire - - - - -	ton	3	0
Bricks and tiles common - - - - -	1,000	1	6
„ paving or malkiln - - - - -	100	0	9
„ fire - - - - -	1,000	1	6
Brimstone - - - - -	ton	1	6
Bristles - - - - -	ton	3	6
Burr stones - - - - -	100	0	8
Butter in firkins - - - - -	ton	2	6
Carboys of drugs not dangerous - - - - -	ton	4	0
Carriages bodies not exceeding one ton - - - - -	each	4	0
Cattle (cows oxen bulls bullocks) - - - - -	each	2	0
Cement - - - - -	ton	1	6
Cheese - - - - -	ton	2	6
Chicory - - - - -	ton	2	6
Coal - - - - -	ton	0	4
Coffee - - - - -	ton	2	6
Coke cinders culm - - - - -	ton	0	3
Copper ore - - - - -	ton	1	6
„ and brass - - - - -	ton	2	6
„ „ nails wrought - - - - -	ton	3	0
Cordage - - - - -	ton	2	0
Cork wood - - - - -	ton	2	6
Corn (barley maize oats rye and wheat) - - - - -	ton	1	6

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Articles.

Per

Maximum rates.

			s.	d.
Cotton raw pressed	- - - - -	ton	3	6
Cranberries	- - - - -	ton	2	6
Fish cured	- - - - -	ton	2	6
Flax in bales	- - - - -	ton	2	0
Flour	- - - - - 2½ cwt.	sack	0	2½
Fruit dried (currants raisins and figs)	- - - - -	ton	2	6
Fustic	- - - - -	ton	1	6
Glass crown rolled and sheet in boxes or cases	- - - - -	ton	3	0
Grease in casks	- - - - -	ton	2	0
Grindstones and millstones finished	- - - - -	ton	2	6
Guano	- - - - -	ton	1	6
Hemp pressed	- - - - -	ton	2	0
Hides and skins	- - - - -	ton	3	0
Hoofs and horns	- - - - -	ton	3	0
Hops	- - - - -	ton	3	0
Horses asses and mules	- - - - -	each	2	6
Iron bar	- - - - -	ton	1	6
„ bolt	- - - - -	ton	1	6
„ pig	- - - - -	ton	0	8
„ scrap	- - - - -	ton	1	6
„ ore	- - - - -	ton	0	4
„ hoops	- - - - -	ton	1	6
„ girders and railway sleepers	- - - - -	ton	1	6
Kelp	- - - - -	ton	2	0
Lead sheet	- - - - -	ton	2	0
„ ore	- - - - -	ton	1	6
„ white or red	- - - - -	ton	2	0
Leather undressed	- - - - -	ton	2	6
Limestone in bulk	- - - - -	ton	0	4
Lime in bulk	- - - - -	ton	0	6
Linseed	- - - - -	ton	1	6
Logwood	- - - - -	ton	1	6
Manganese ore	- - - - -	ton	0	6
Marble rough in blocks of 5 tons or less	- - - - -	ton	1	6
„ „ „ more than 5 tons	- - - - -	ton	5	0
Mats bass	- - - - -	ton	3	0
Molasses	- - - - -	ton	2	0
Nitrate of soda	- - - - -	ton	1	6
Oil not dangerous in casks or drums	- - - - -	ton	2	6
Oil cake	- - - - -	ton	1	6
Onions	- - - - -	ton	2	0
Oranges and lemons	- - - - -	ton	2	6
Paint and colours in iron drums	- - - - -	ton	2	6
Pepper	- - - - -	ton	3	0

Articles.	Per	Maximum rates.		A.D. 1919.
		s.	d.	
Pork and beef in brine - - - - -	ton	2	6	
Potatoes - - - - -	ton	1	6	
Rags not oily - - - - -	ton	1	6	
Rape seed - - - - -	ton	2	6	
Rice - - - - -	ton	1	6	
Rope old - - - - -	ton	1	6	
Salt - - - - -	ton	0	6	
Saltpetre - - - - -	ton	2	0	
Seal skins - - - - -	ton	4	0	
Seed clover - - - - -	ton	2	6	
Sheep goats and swine - - - - -	each	0	6	
Shumac - - - - -	ton	4	0	
Slates common - - - - -	ton	1	6	
Soap - - - - -	ton	2	0	
Spirits and wines - - - - -	ton	4	0	
Sugar raw in bags cases and casks - - - - -	ton	2	0	
„ refined - - - - -	ton	3	0	
Tallow - - - - -	ton	2	0	
Tar and pitch - - - - -	ton	1	6	
Tea - - - - -	ton	4	0	
Tiles draining - - - - -	ton	0	6	
Tin ingots - - - - -	ton	2	6	
Tobacco leaf - - - - -	ton	3	0	
Toys - - - - -	ton	4	0	
Turpentine crude - - - - -	ton	2	0	
Valonia - - - - -	ton	4	0	
Waters mineral - - - - -	ton	2	6	
Whiting and whitening - - - - -	ton	1	6	
Wood dyers - - - - -	ton	1	6	
„ furniture - - - - -	ton	4	0	
„ deals - - - - -	standard	5	0	
„ timber fir - - - - -	load 50 c.ft.	1	6	
„ oak - - - - -	load 40 c.ft.	1	6	
„ staves - - - - -	load 50 c.ft.	1	6	
Wool raw pressed - - - - -	ton	2	6	
Yarn - - - - -	ton	2	6	
Yeast - - - - -	ton	4	0	
Zinc ingots - - - - -	ton	1	6	

PART II.

REGULATIONS. -----

1. Weights and measures mentioned in the foregoing Part save where specially excepted are imperial weights and measures.

2. Where goods are charged at per ton or by other measure there shall be payable for a fraction of a ton or other measure the rate

A.D. 1919. payable in respect of a whole ton or other measure if the fraction is more than one half and one half that rate if the fraction is not more than one half.

3. In weighing and measuring goods for ascertaining the rates payable in respect thereof the weight and measurement of the packing and packages (if any) shall be included.

4. Any fraction of one penny in the total amount of rates payable in respect of any one consignment may be charged as one penny.

FOURTH SCHEDULE.

CHARGES FOR DOCKING PUMPING AND UNDOCKING AND RENTS FOR USE OF GRAVING DOCK.

	Charges for docking pumping and undocking.	Rents for use.	
		For first 24 hours (or part) from entry therein.	For every 24 hours (or part) after the first.
	£ s. d.	£ s. d.	£ s. d.
Vessels exceeding 1,000 and not exceeding 1,500 tons gross.	40 0 0	14 1 3	9 7 6
Vessels exceeding 1,500 and not exceeding 2,000 tons gross.	50 0 0	18 15 0	12 10 0
Vessels exceeding 2,000 and not exceeding 2,500 tons gross.	60 0 0	23 8 9	15 12 6
Vessels exceeding 2,500 and not exceeding 3,000 tons gross.	70 0 0	28 2 6	18 15 0
Vessels exceeding 3,000 and not exceeding 3,500 tons gross.	80 0 0	32 16 3	21 17 6
Vessels exceeding 3,500 and not exceeding 4,000 tons gross.	90 0 0	37 10 0	25 0 0
Vessels exceeding 4,000 and not exceeding 4,500 tons gross.	100 0 0	42 3 9	28 2 6
Vessels exceeding 4,500 and not exceeding 5,000 tons gross.	110 0 0	46 17 6	31 5 0

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